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24-CLJ-03049 PROVIDENT CREDIT UNION, VS. JEANNIE CHAN

LINE 3

PROVIDENT CREDIT UNION
JEANNIE CHAN

JOHN D. MENDONZA
PRO PER

PLAINTIFF: PROVIDENT CREDIT UNION'S MOTION FOR SUMMARY ADJUDICATION

TENTATIVE RULING:

Plaintiff Provident Credit Union's unopposed Motion for Summary Adjudication, filed Dec. 29, 2025, which seeks summary adjudication of the Complaint's First Cause of Action for "Breach of Loan Agreement (VISA)," is GRANTED. (Code Civ. Proc. § 437c.)

This is an uncontested breach of contract (breach of loan agreement) case. Defendant Jeannie Chan does not dispute that she owes \$15,347.31 under the subject Visa credit card loan agreement. Defendant has filed an Answer admitting that the Complaint's allegations are true, and stating that Defendant asserts no defenses. Defendant merely requested, in her Answer, that she be allowed to make payments pursuant to a payment plan. (See Oct. 4, 2024 Answer.)

With this Motion, Plaintiff met its initial burden of presenting evidence demonstrating that in 2017, Defendant entered into the subject Visa credit card agreement with Plaintiff, thereafter incurred a debt to Plaintiff of \$15,347.31, and has not paid the amount due. (Code Civ. Proc. § 437c(p)(1).) As noted, Defendant then filed an Answer to the Complaint, admitting that all of the Complaint's allegations are true, and that Defendant is not asserting any defense(s). With this Motion, Plaintiff also filed a Separate Statement of Undisputed Material Facts, which cites to supporting evidence showing that Defendant owes \$15,347.31 under the loan agreement, and that per the loan agreement's terms, Plaintiff is entitled to \$3,270 in attorney's fees, plus \$870 in costs, for total breach of contract damages of \$19,487.31, calculated as follows:

\$15,347.31 Amount owed under the loan agreement;
\$3,270 Attorney's fees (see Dec. 29, 2025 Tinga Decl., ¶¶ 3-7; Dec. 29, 2025 "Notice of Lodgment," Ex. F);
\$870 Costs of suit (see Dec. 29, 2025 Tinga Decl., ¶ 8 [Complaint filing fee of \$370 + motion filing fee of \$500]);
for a total of \$19,487.31 owed for breach of the loan agreement.

Plaintiff having met its initial burden under Code Civ. Proc. § 437c(p)(1), the burden then shifted to Defendant to come forward with evidence creating a triable issue of fact as to the First Cause of Action for "Breach of Loan Agreement (VISA), which Defendant has not done. (Code Civ. Proc. § 437c(p)(1).) Defendant has not opposed the motion, and has not disputed any of Plaintiff's Statement of Undisputed Material Facts. (CRC 8.54(c) ["A failure to oppose a motion may be deemed a consent to the granting of the motion."]) Defendant has also admitted that the Complaint's allegations are true, and that Defendant has no defense(s). (See Oct. 4, 2024 Answer.)

Accordingly, Plaintiff's Motion for Summary Adjudication of the Complaint's First Cause of Action for "Breach of Loan Agreement (VISA)" is GRANTED. (Code Civ. Proc. § 437c.) At Plaintiff's request, the Complaint's Second and Third Causes of Action ("account stated" and "money lent") are DISMISSED with prejudice.

Plaintiff is entitled to entry of judgment in Plaintiff's favor, and against Defendant, for breach of the loan agreement, in the amount of \$19,487.31, calculated as provided above. If the tentative is not opposed, the Court will sign the judgment filed with the motion on December 29, 2025.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. Monday, September 28, 2026 stating, without argument, the portion(s) of the tentative ruling that the party contests. **However any contest will be heard on October 5, 2026.**

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CIV-01909 DAVID COLLINS VS. FCA US, LLC, ET AL.

LINE 4

DAVID COLLINS
FCA US, LLC

LARRY W. CHAE
LAUREN K. VANDENBURG

PLAINTIFF: DAVID COLLINS'S MOTION TO COMPEL INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE 871.26 AND REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING:

This is a Song-Beverly Consumer Warranty Act action concerning a 2020 RAM 1500. FCA served initial disclosures on July 28, 2025 — comprising, among other things, the owner's manual, warranty booklet, sales brochure, Monroney label, warranty-claim documents, service bulletins, recall documents, and repair-order reports.

Nearly a year later, on June 2, 2026, Collins served a meet-and-confer letter contending FCA's disclosures were deficient and demanding verified written responses, disclosure of FCA's search methodology, and supplemental production.

On July 8, 2026 this Court Ordered the parties to an Informal Discovery Conference before the Civil Commissioner. Both parties violated that Court Order by failing to submit the required statements and the Commissioner continued the Conference and reiterated the Order that the parties submit statements. But Plaintiff again didn't submit a statement (while Defendant did) and Plaintiff sent an attorney to the Conference who lacked knowledge of the underlying dispute. Plaintiff is admonished that its next unexcused violation of Court Orders will result in a significant sanction. Plaintiff was advised that his motion appeared to be not well taken and that he should withdraw it based on the content of the Conference.

Plaintiff did not withdraw the motion, did not file a reply and has never responded to Defendant's arguments. It has not cited to any authority providing for a motion to compel in this context, a requirement of a verification in this context, or responded to Defendant's argument and evidence that the motion is moot. Accordingly the motion is DENIED.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. Monday, September 28, 2026 stating, without argument, the portion(s) of the tentative ruling that the party contests. **However any contest will be heard on October 5, 2026.**

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